

Ravishanker Verma v. State of U.P.

Allahabad High Court · Division Bench · 1 August 2022 · Writ-C No. 21379 of 2022 · Writ - C No. 21379 of 2022 · **Writ disposed; petitioner relegated to clause 6.5 objection; coercive action stayed eight weeks.**

HEADNOTE

Without examining the merits of a challenge to a recovery certificate, a prayer to recast bills from actual meter reading, or a request for 45 H.P. factory connection, the Division Bench disposed of the writ by granting liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, directed decision within four weeks of a timely filing, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

The petitioner, running a factory, assailed a recovery certificate dated 5 August 2021 issued by respondent no. 4 of the power distribution corporation. He sought quashing of that demand, recasting of the bill from actual meter reading after credit for deposits already made, sixteen installments for the balance, and sanction and connection of 45 H.P. load to the factory. Counsel for the corporation stated on instructions that an objection to the demand would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

Without expressing any opinion on merits, the High Court disposed of the writ by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 against the impugned recovery demand before respondent no. 4 within four weeks; such objection, if filed in time, was to be decided in accordance with law within the next four weeks after hearing the petitioner; coercive action on the impugned demand was stayed for eight weeks or until disposal of the objection, whichever was earlier. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging a recovery certificate and related billing and connection reliefs was disposed of by relegating the petitioner to an objection under Para 6.5, without any opinion on merits. ¶ 3-4

clause-6.5-statutory-remedy-disputed-bill Para 6.5 was treated as the statutory forum for the petitioner's objection to the impugned electricity demand, to be decided in accordance with law after hearing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 05.08.2021 AND CORRECTNESS OF THE IMPUGNED ELECTRICITY DEMAND

Court expressly declined to opine on merits. ¶ 4

NOT DECIDED — RECASTING OF THE BILL FROM ACTUAL METER READING, CREDIT FOR DEPOSITS, AND SIXTEEN-INSTALMENT FACILITY

¶ 2,4

NOT DECIDED — DIRECTION TO SANCTION AND CONNECT 45 H.P. LOAD TO THE PETITIONER'S FACTORY

¶ 2,4

